

Amendment No. 3 to HB1144

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 1115

House Bill No. 1144*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 41, Chapter 24, is amended by adding the following as a new section:

In a facility operated pursuant to a contract to provide correctional services, as defined in § 41-24-102(2)(F), or in a facility operated pursuant to a contract with a county to hold state inmates and that county has entered into a contract with a contractor to provide correctional services, as defined in § 41-24-102(2)(F), if the death rate of inmates at the facility, as reported in the department's annual statistical abstract, is twice the death rate of an equivalent state-operated facility, the department shall reduce the population at such facility by ten percent (10%) within ninety (90) days of issuing such report. The reduction in population must continue until the department determines that the conditions leading to the reduction have been corrected.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.